

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/09/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CIV2301648

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFFS:      STANLEY TWOMEY  
GRAY, ET AL.

vs.

DEFENDANTS:    THE REGENTS OF THE  
UNIVERSITY OF CALIFORNIA, ET AL.

NATURE OF PROCEEDINGS: MOTION – SANCTIONS – DISCOVERY FACILITATOR PROGRAM

**RULING**

Defendants Prima Medical Foundation and Winnie Wai Peng filed a motion for terminating sanctions Plaintiffs on July 16, 2026. The motion requests terminating sanctions pursuant to Code of Civil Procedure sections 2023.010, 2030.030, 2030.290, and 2031.300, on the grounds that they failed to comply with four prior discovery orders and have not provided responses to initial discovery propounded more than one year ago. A notice was served on Plaintiffs of the motion. Additionally, Plaintiffs' counsel was present at the ex parte hearing when the Court rescheduled the hearing date to September 9, 2026. Despite such notice, no opposition was filed.

A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

Based on the non-opposition, and upon review of the Court's own docket, and the declarations filed in connection with this motion, the court grants the motion and orders that the complaint be stricken against Defendants Prima Medical Foundation and Winnie Wai Peng. In light of this ruling, the court denies Defendants' request for monetary sanctions.

*All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.*

*The Zoom appearance information for September, 2026 is as follows:*

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

*If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/09/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0001370

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

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|                                                          |  |
|----------------------------------------------------------|--|
| PLAINTIFFS:      MARK KELTNER                            |  |
| vs.                                                      |  |
| DEFENDANTS:    MERCY HOUSING<br>MANANGEMENT GROUP, ET AL |  |

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NATURE OF PROCEEDINGS: MOTION - CONTINUE TRIAL

**RULING**

This matter is set for trial for October 7, 2026 and is approaching three years old. Defendant requests a six-month trial due to discovery delays allegedly on the part of Plaintiff. Plaintiff did not file an opposition to the motion. Appearances required.

*All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.*

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